

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND THE
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
SAN JACINTO UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

JENNAFER BRUNNER, Respondent

OAH No. 2024101135

DECISION

This matter was heard before the Commission on Professional Competence in San Jacinto, California on January 13 through 16, 2025. The Commission was comprised of the following members: Administrative Law Judge Debra D. Nye-Perkins, Troy Liggins, and Arati Clarke.

Laurie Kamerrer, Attorney at Law, Adams, Silva & McNally, L.L.P., represented the San Jacinto Unified School District (district).

Alejandra Gonzalez-Bedoy, Attorney at Law, Law Offices of Carlos Perez, represented respondent, Jennafer Brunner.

On January 27, 2025, the Commission met to deliberate, and the matter was submitted.

PROTECTIVE ORDER

The names of all minor students referred to in this matter are confidential and subject to a protective sealing order. Several witnesses who testified were also minor students. The documents received as evidence in this matter that contain the name of a student have been redacted to remove the student's name. No court reporter or transcription service shall transcribe the names of the student witnesses or student names mentioned in testimony but shall instead refer to each student by their corresponding initials.

CASE SUMMARY

Ms. Brunner was employed by the district as a special education teacher for the 2022-23 school year at San Jacinto Leadership Academy (SJLA), which is a high school. On May 3, 2024, Ms. Brunner called the classroom of a history teacher, Mr. Gonzalez, during his instructional time and asked him to release two eleventh grade students, S.C. and V.E., to Ms. Brunner's classroom. At that time Ms. Brunner had no students in her classroom, but her instructional aide, Xitlaly Bueno, was present in Ms. Brunner's classroom. When the two students arrived at her classroom, Ms. Brunner told them she wanted to show them two dresses Ms. Brunner was considering wearing to the SJLA prom. Ms. Brunner then instructed Ms. Bueno to lock the door. Thereafter, Ms. Brunner proceeded to undress and disrobe to her bra and underwear in plain view of both students and Ms. Bueno, making them feel very uncomfortable, to try on each of the two dresses. Thereafter, while being interviewed by the district as part of its investigation into the events of May 3, 2024, Ms. Brunner provided dishonest and conflicting versions of the events that happened that day. The Commission found that

Ms. Brunner's actions constituted immoral conduct, dishonesty, and evident unfitness for service. Based upon the evidence presented, the Commission concluded that the allegations were sustained and warranted Ms. Brunner's dismissal from the district.

FACTUAL FINDINGS

Jurisdictional Matters

1. Ms. Brunner was employed by the district as a special education teacher (grades 7-12), requiring an education specialist instruction credential for mild/moderate authorization. She was first hired by the district for the 2021-22 school year as a special education teacher at the San Jacinto High School (SJHS). Ms. Brunner transferred within the district from SJHS to SJLA about halfway through the 2022-23 school year. During the time of the alleged incident at issue in this hearing, Ms. Brunner worked at SJLA.

2. On May 6, 2024, Ms. Brunner was placed on administrative leave from her position at the district.

3. Sharon Raffiee-Shirazi, Ed.D., the district's Executive Director of Personnel Services, signed the Notice of Immediate Suspension Without Pay; Recommendation for Dismissal from Employment; and Statement of Charges on August 1, 2024, in her official capacity. The notice sets forth the facts and laws on which the district was relying and sought to dismiss Ms. Brunner from employment with the district on the grounds of immoral conduct (Education Code section 44932, subdivision (a)(1)), dishonesty (Education Code section 44932, subdivision (a)(3), and evident unfitness for service (Education Code section 44932, subdivision (a)(6)). The notice also sets forth the facts and laws on which the district was relying to immediately suspend Ms.

Brunner without pay on the grounds of immoral conduct (Education Code section 44932, subdivision (a)(1)).

4. In the Charges as set forth in the Notice of Immediate Suspension Without Pay; Recommendation for Dismissal from Employment; and Statement of Charges the district alleges that during the fall of 2023, Ms. Brunner behaved inappropriately with a male student, A.R.¹, by obtaining A.R.'s phone number and by exchanging text messages with him during class time. Another student noticed the text messaging and reported it. As a result, the SJLA Principal, Lloyd Sheppard, directed respondent to consider interactions with students and to use only district means to communicate with students and families.

The Charges further set forth that on May 3, 2024, Ms. Brunner called the classroom of SJLA history teacher, Mr. Gonzalez, to release two female eleventh grade students, S.C. and V.E., to Ms. Brunner's classroom. S.C. and V.E. were not Ms. Brunner's students, but Ms. Brunner had developed a close personal relationship with them. At the time Ms. Brunner called S.C. and V.E. to her classroom, Ms. Brunner had no other students in the classroom, but she did have an instructional aide, Ms. Bueno, in the room. When S.C. and V.E. arrived at Ms. Brunner's classroom, Ms. Brunner told them that she wanted to show them two dresses Ms. Brunner was considering wearing to the SJLA prom. Upon arrival, V.E. asked Ms. Brunner "Is that what you called us in for?"

¹ To protect student privacy the student's initials are used instead of their full name. With regard to student V.E., whose initials are actually V.E.G., the initials V.E. will be used throughout this decision to refer to that student so as to be consistent with the Statement of Charges.

In response Ms. Brunner stated, "It was not mandatory for you to come if you didn't want to." Both students then sat at desks facing Mr. Brunner. Ms. Brunner asked Ms. Bueno to "check the door," at which time Ms. Bueno locked the classroom door.

Ms. Brunner then undressed and stood in front of students S.C. and V.E., and Ms. Bueno while wearing only a bra and underwear. Both students and Ms. Bueno were uncomfortable. Ms. Brunner then put on one of two dresses and asked S.C. and V.E. if they liked the dress. V.E. complimented the dress, and S.C. stated that she did not like it. Ms. Brunner then instructed Ms. Bueno to take a photograph of Ms. Brunner wearing the first dress, and Ms. Bueno did so. Ms. Brunner again disrobed down to only her bra and underwear, and changed into a second dress, all in front of S.C., V.E. and Ms. Bueno. After asking the students' opinion of the second dress, Ms. Brunner again disrobed down to her bra and underwear in front of the two students and Ms. Bueno and thereafter put on her pants and shirt she had been wearing that day. The lunch bell rang, and the two students left Ms. Brunner's classroom.

After the two students left Ms. Brunner's classroom, Ms. Bueno approached Ms. Brunner and told her that the two students were uncomfortable, the incident should not have occurred, and it was inappropriate. For the first time, Ms. Brunner then showed remorse for her conduct. When S.C. and V.E. returned to Ms. Brunner's classroom during lunch to attend Art Club, Ms. Brunner asked to speak to them privately. Ms. Brunner apologized to the two students, acknowledged that her behavior was improper and stated that it should not have happened. Ms. Brunner pushed V.E. for her opinion regarding Ms. Brunner's conduct.

The Statement of Charges further alleges that on Monday, May 6, 2024, Ms. Brunner met with Mr. Sheppard, Dr. Raffiee-Shirazi, and San Jacinto Teachers Association President Zoila Carrillo regarding the May 3, 2024, incident. During that

meeting, Ms. Brunner admitted to calling S.C. and V.E. out of class and to disrobing to try on a dress. However, Ms. Brunner dishonestly claimed that she only removed her polo shirt while continuing to wear jeans, and that S.C. and V.E. were far across the room and mostly disinterested. During that meeting, Ms. Brunner also dishonestly claimed to have only tried on one dress and then put her shirt back on, and denied that S.C. and V.E. were uncomfortable and attempted to avert their eyes when Ms. Brunner was changing clothes. Ms. Brunner admitted to apologizing to S.C. and V.E. after Ms. Bueno told her that her behavior was inappropriate. Ms. Brunner's dishonest responses were part of a design to conceal her conduct and avoid responsibility for her actions.

Furthermore, the Statement of Charges alleges that Ms. Brunner instructed Ms. Bueno to delete the photograph Ms. Brunner requested her to take of Ms. Brunner wearing one of the dresses she tried on to conceal Ms. Brunner's conduct.

5. Ms. Brunner timely appealed the suspension and dismissal action, denying that grounds for her suspension and dismissal from employment existed, and this hearing followed.

The District's Evidence

6. The district called six witnesses at the hearing and provided numerous documentary evidence, including witness declarations, email correspondence between Ms. Brunner and students, email correspondence between Ms. Brunner and district staff, as well as Ms. Brunner's written response to allegations in this matter. The following factual findings are based upon the testimony of the witnesses, as well as documentary evidence related to that testimony.

TESTIMONY OF XITLALY ARELLANO, A.K.A. XITLALY BUENO

7. Xitlaly Arellano was previously known as Xitlaly Bueno.² Ms. Bueno is currently employed by AmeriCorps as a reading teacher. Prior to this employment, Ms. Bueno worked from February 2024 to June 2024 at the district as an instructional aide for Ms. Brunner at SJLA, which provides instruction for students in both middle school and high school. While working at SJLA, Ms. Bueno's title was Instructional Aide for Special Education students. Ms. Bueno explained that Ms. Brunner was a special education teacher, and as such she simply provided support to special education students in their general education classrooms. Ms. Bueno's duties were to support Ms. Brunner's work as a special education teacher. She further explained that Ms. Brunner would do "push in work" meaning that she would go into general education classrooms taught by other teachers and would provide support to special education students, as well as general education students while in that classroom. Ms. Bueno provided support to Ms. Brunner and would frequently be in another classroom than Ms. Brunner. However, Ms. Bueno was familiar with Ms. Brunner's schedule and would frequently work in the same classroom with her. Ms. Brunner would direct Ms. Bueno's day-to-day work.

8. Ms. Bueno stated that each day has six class periods, each lasting about 50 to 55 minutes. Ms. Brunner had her own classroom with about 25 to 30 student desks, but Ms. Brunner did not teach a class in that room. However, students would come into Ms. Brunner's classroom during lunch or during "Lion time" for help with assignments. Ms. Bueno explained that "Lion time" is at the end of the day and was a

² For the purpose of this decision and to be consistent with the Statement of Charges in this matter, Ms. Arellano will be referred to as Ms. Bueno.

preparation time for students, similar to a homeroom time. Both special education and general education students typically came into Ms. Brunner's classroom during lunch and Lion time to seek Ms. Brunner's assistance. The Art Club also met in Ms. Brunner's classroom on Fridays at lunch time. Ms. Bueno testified that she tended to see the same students in Ms. Brunner's classroom during free time, and two of those students were S.C. and V.E. Ms. Bueno testified that S.C. and V.E. "were always in Ms. Brunner's classroom," and she knew them as "Ms. Brunner's girls." Ms. Bueno stated that S.C. and V.E. were in Ms. Brunner's classroom "whenever they could be" and "before school, after school, and at lunch." Ms. Bueno stated that Ms. Brunner was "very close" to S.C. and V.E., neither of whom were special education students.

9. Ms. Bueno testified that it is important for teachers to avoid communicating with students outside of school hours, and that Ms. Brunner told Ms. Bueno the importance of that rule.

10. Ms. Bueno testified about the events of May 3, 2024, which was a Friday. On that day during the "prep period," which was the fourth period of the day, Ms. Bueno and Ms. Brunner left the school to go to a clothing store so that Ms. Brunner could find a dress to wear to the school prom, which she was attending as a chaperone. Ms. Brunner drove the two of them to the clothing store, which was about a 15-minute drive away. Ms. Brunner purchased two dresses at the store. They were at the clothing store for about an hour because when they returned to the school, fifth period had just begun.

11. After returning to the school from the shopping trip, Ms. Brunner told Ms. Bueno that she wanted to "show the two girls [S.C. and V.E.] the dresses." After going into Ms. Brunner's classroom, Ms. Brunner called Mr. Gonzalez, who is the fifth period history teacher for both S.C. and V.E. Ms. Bueno explained that fifth period was

instructional time for both S.C. and V.E. in Mr. Gonzalez's classroom. According to Ms. Bueno, Ms. Brunner asked Mr. Gonzalez if he "could send her girls over." Ms. Bueno understood that Ms. Brunner meant S.C. and V.E. by using the phrase "her girls." Ms. Bueno stated that Ms. Brunner used the phrase "my girls" to refer to S.C. and V.E. "all the time." After S.C. and V.E. left Mr. Gonzalez's classroom and arrived at Ms. Brunner's classroom, Ms. Brunner asked Ms. Bueno to "check the door," which Ms. Bueno understood to mean lock the door. Ms. Bueno did not understand at that time why Ms. Brunner wanted her to lock the door, but she did understand that Ms. Brunner wanted to show the two dresses to S.C. and V.E. Ms. Brunner told S.C. and V.E. that she wanted to show them dresses.

12. After S.C. and V.E. entered Ms. Brunner's classroom, they went to sit at desks located right next to Ms. Brunner. Ms. Bueno then turned around to see that Ms. Brunner had undressed and was wearing only her bra and underwear in front of S.C. and V.E., who were located about five feet away from Ms. Brunner. Ms. Bueno stated that she was located at the classroom door, which was about ten to fifteen feet away from Ms. Brunner, who was wearing only a bra and underwear and had removed both her shirt and pants at the same time. Ms. Bueno, as well as both S.C. and V.E., could clearly see Ms. Brunner undressed down to her bra and underwear with nothing obstructing their view. Ms. Bueno was shocked and walked to her desk. Ms. Brunner then put on one of the dresses and asked Ms. Bueno to take a photograph of her wearing the dress, which Ms. Bueno did using Ms. Brunner's phone.

13. After Ms. Bueno took the single photograph, then Ms. Brunner again undressed down to her bra and underwear in full view of Ms. Bueno and S.C. and V.E. Ms. Bueno stated that she was still in shock and could not believe what was happening. Ms. Bueno testified that when Ms. Brunner called S.C. and V.E. into her

classroom to show them the dresses, Ms. Bueno thought that Ms. Brunner would simply hold up the dresses to show them but not get undressed to her bra and underwear to try them on. Ms. Bueno testified that Ms. Brunner's actions in undressing in front of S.C. and V.E. was shocking and "went against everything she had taught me about how important boundaries are with students." Ms. Bueno viewed Ms. Brunner's actions as a violation of those teacher/student boundaries. After Ms. Brunner tried on the second dress, she asked Ms. Bueno to take a photo of Ms. Brunner wearing the second dress.

14. After Ms. Bueno took the second photo of Ms. Brunner wearing the second dress, Ms. Brunner again undressed down to her bra and underwear in full view of Ms. Bueno and S.C. and V.E. and thereafter put her shirt and pants back on. Ms. Bueno stated that during the three times Ms. Brunner got undressed down to her bra and underwear, Ms. Bueno could hear S.C. and V.E. both speaking to each other and V.E. stated in Spanish to S.C. that she was uncomfortable and wanted to leave. Ms. Bueno could see S.C. and V.E. during the times that Ms. Brunner was changing clothing, and Ms. Bueno noticed that V.E. was attempting to avoid looking at Ms. Brunner, and S.C. was "more relaxed."

15. After Ms. Brunner was re-dressed in her shirt and pants, the fifth period ended and S.C. and V.E. went out of the classroom to go to lunch. As soon as both S.C. and V.E. left the classroom, Ms. Bueno approached Ms. Brunner and told her that "the girls were uncomfortable" and that Ms. Brunner "should not have gotten undressed in front of the students." In response to that statement, Ms. Brunner "was shocked" and stated, "that should not have happened, and [she] needed to check her boundaries."

16. Ms. Bueno also stated that during the fifth period on May 3, 2024, Ms. Brunner was scheduled to "push into" other general education classes, but Ms. Brunner did not do so and instead was trying on dresses.

17. During the lunch period on May 3, 2024, Ms. Brunner's classroom was the site of the Art Club meeting, in which both S.C. and V.E. were participants. After having lunch both S.C. and V.E. returned to Ms. Brunner's classroom on May 3, 2024, for the Art Club meeting. Ms. Brunner had the other students in Art Club step out of her classroom so that she could speak with S.C. and V.E. privately with Ms. Bueno in the classroom. Ms. Bueno heard Ms. Brunner tell both S.C. and V.E. that she was sorry, she "never meant for it to happen," and "she could get into trouble." According to Ms. Bueno, S.C. responded by being relaxed and saying, "it is not like we are going to tell anyone," and V.E. responded by saying nothing and appearing visibly uncomfortable. Ms. Bueno understood that as a result of that conversation, S.C. and V.E. would keep the information private to protect Ms. Brunner. Thereafter, Ms. Brunner let the other students back into the classroom for Art Club.

18. Ms. Bueno stated that during the sixth period on May 3, 2024, both she and Ms. Brunner were scheduled to do push-in services in a general education classroom. However, neither of them did so. After lunch, Ms. Brunner was very upset and quiet. Ms. Bueno could see that Ms. Brunner was very upset, and as a result Ms. Bueno asked Ms. Brunner if she wanted to take a walk. During the walk, Ms. Brunner kept telling Ms. Bueno that she was in shock and could not believe that she "crossed boundaries with the girls like that." Ms. Bueno characterized Ms. Brunner's demeanor during this walk as "scared and anxious." Ms. Bueno testified that she was disappointed in Ms. Brunner because she had wanted to be a teacher like Ms. Brunner. After their walk, Ms. Bueno and Ms. Brunner arrived at the teachers' lounge where Ms.

Brunner got her food out of the refrigerator and stated that she was scared and that she could lose everything for which she worked so hard. Ms. Brunner then began to cry. At that point, Mr. Sheppard, the principal, walked into the teachers' lounge and asked Ms. Brunner if she was alright, and Ms. Brunner did not respond. Ms. Bueno remained in the teachers' lounge for the remainder of the school day.

19. After leaving the teachers' lounge, Ms. Bueno got into her car and immediately called the district to report the incident. Ms. Bueno left a message with the district, and later that same day Dr. Sharon Raffiee-Shirazi called Ms. Bueno regarding the incident. Ms. Bueno testified that most of the phone call with Dr. Raffiee-Shirazi was her trying to get Ms. Bueno to stop crying. Ms. Bueno did not immediately identify herself to Dr. Raffiee-Shirazi because she felt like she was hurting Ms. Brunner. Dr. Raffiee-Shirazi told Ms. Bueno she was doing the right thing.

20. Ms. Bueno testified that as a result of the May 3, 2024, incident, she almost left the field of education completely because she "did not want to be around that." As a result of the incident, Ms. Bueno "went into a depression because the incident almost broke [her]." Ms. Bueno stated that she also lost a friend, Ms. Brunner, because of the incident.

21. On Monday, May 6, 2024, Ms. Bueno met with Dr. Raffiee-Shirazi, Mr. Shepphard, and another woman from the teachers' union. During that meeting Dr. Raffiee-Shirazi asked Ms. Bueno questions regarding the incident and Ms. Bueno answered truthfully. Dr. Raffiee-Shirazi asked Ms. Bueno to provide a written statement describing the events on May 3, 2024, and Ms. Bueno did so. That document was received into evidence and mirrored Ms. Bueno's testimony at the hearing except in one respect. In her written statement, Ms. Bueno wrote that Ms. Brunner only tried on one dress and not two dresses. Ms. Bueno testified that Ms. Brunner did not put a

dress on over her clothing on May 3, 2024, but instead Ms. Brunner undressed down to her bra and underwear prior to putting on a dress.

22. Because of the May 3, 2024, incident Ms. Bueno chose not to return to SJLA after the 2024-25 school year. The incident impacted Ms. Bueno profoundly, and she stressed that she believes Ms. Brunner's actions on May 3, 2024, were wrong.

23. Ms. Bueno testified on cross-examination that she never deleted the photos she took on Ms. Brunner's phone of Ms. Brunner wearing the dresses, and those photos were never sent to her. Ms. Bueno also testified on cross-examination that she was not sure why she did not write in her statement that Ms. Brunner tried on two dresses instead of one, but she stressed that Ms. Brunner tried on two dresses and each of the dresses were black in color.

TESTIMONY OF STUDENT S.C.

24. S.C. is 17 years old and currently in the 12th grade at SJLA where she was also a student during the 2023-24 school year. S.C. is familiar with Ms. Brunner and described her as "one of my teachers." However, S.C. admitted that Ms. Brunner was not assigned as a teacher to her, and S.C. is not a special education student. S.C. testified that Ms. Brunner would work with S.C. on her schoolwork for reading, math, and English Language (EL) typically in Ms. Brunner's classroom. S.C. would go to Ms. Brunner's classroom every day, usually during lunch, Lion time, and sometimes during times when S.C. was scheduled to be in another classroom. S.C. stated that she went to Ms. Brunner's class "just to relax or socialize and [she] did that almost every day." S.C. testified that some other students did that as well, including V.E. With regard to assistance on schoolwork, S.C. stated she did not get help from Ms. Bueno, but only from Ms. Brunner.

25. On May 3, 2024, S.C. was in her fifth period history class with Mr. Gonzalez, along with V.E. During that class period, Mr. Gonzalez got a phone call from Ms. Brunner after which Mr. Gonzalez asked S.C. and V.E. if they wanted to go to Ms. Brunner's classroom. Both S.C. and V.E. then went to Ms. Brunner's classroom. After arriving at Ms. Brunner's classroom, Ms. Brunner started talking about prom dresses and decided to try on some prom dresses. S.C. then understood that the reason she was in Ms. Brunner's classroom was to look at Ms. Brunner's dresses and give an opinion. S.C. and V.E. sat at student desks directly across from Ms. Brunner's desk where they could see Ms. Brunner clearly. Ms. Brunner asked Ms. Bueno to lock the classroom door, which she did. S.C. stated that Ms. Brunner tried on two dresses. Ms. Brunner took off her shirt and pants, and S.C. and V.E. were able to see Ms. Brunner in her undergarments. S.C. stated that when Ms. Brunner undressed down to her underwear, S.C. "looked away to give her privacy." S.C. stated that during that time V.E. told her that she felt uncomfortable. S.C. stated that "we were reading each other's lips that we were both uncomfortable." After Ms. Brunner tried on the first dress, she asked S.C. And V.E. if the dress looked good, S.C. told her it did. Ms. Brunner then took off that dress and was wearing only her underwear before trying on the second dress. Thereafter, Ms. Brunner took off the second dress in front of S.C. and V.E. before putting her pants and shirt back on. After getting dressed back into her regular clothing, the period ended and S.C. and V.E. left the classroom to get lunch.

26. After leaving the classroom to go to lunch, S.C. and V.E. talked to each other about the incident that just occurred. Both S.C. and V.E. told each other that they were uncomfortable during the time Ms. Brunner got undressed in front of them and agreed that "it was not the right choice for her to do that." Both S.C. and V.E. agreed "not to talk about it outside of school" because they felt that "we should keep what happened private." After S.C. and V.E. returned to Ms. Brunner's classroom with their

lunch and in order to attend Art Club, Ms. Brunner apologized to them. Specifically, Ms. Brunner told them she was sorry for her actions, and it was not right for her to do that. Ms. Brunner told them that if they ever felt uncomfortable again that they should let her know. S.C. and V.E. accepted her apology and told her that they would let her know if they feel uncomfortable in the future. S.C. testified that she did not tell Ms. Brunner that they would keep the incident private, but that “it was not like we were going to tell anyone what she did.” S.C. stated that Ms. Bueno was present during the apology conversation between Ms. Brunner and S.C. and V.E. S.C. also testified that she recalls telling Ms. Brunner that she could get into trouble for what she did. S.C. in addition stated that she recalls multiple times when Ms. Brunner referred to S.C. and V.E. as “my girls.”

27. On the following Monday after the May 3, 2024, incident, S.C. was called to the principal’s office to tell Mr. Sheppard and Dr. Raffiee-Shirazi what happened on May 3, 2024. S.C. was honest and forthright during that meeting regarding the events of May 3, 2024. S.C. also wrote a statement on May 6, 2024, about the events of May 3, 2024, which was received in evidence. The written statement mirrored S.C.’s testimony at the hearing. S.C. wrote in her statement that “to me it was not a really big deal after the apology,” but S.C. testified that what Ms. Brunner did was not ok. S.C. stated that her relationship with Ms. Brunner was nice, and that Ms. Brunner treated her like a friend. S.C. stated that she feels protective of Ms. Brunner and “feel[s] loyalty toward her.”

28. S.C. testified that she did not have text communications with Ms. Brunner. However, multiple text conversations between S.C. and Ms. Brunner were received in evidence. After being shown those text communications, S.C. simply stated that she did not remember sending or receiving those text messages. Some of those

text messages included photographs of Ms. Brunner, V.E., and S.C. with S.C.'s arm obviously holding the phone to take the photo. S.C. stated she took the photos but did not recall texting it to either Ms. Brunner or V.E. S.C. stated that she did not take photos with other teachers, but she did take photos with Ms. Brunner because she was really close with Ms. Brunner. On May 15, 2024, S.C. was with V.E. when V.E. sent a text message to Ms. Brunner, which stated in part, "I just want you to know that me and [S.C.] miss you so much and we are sorry to hear that you got fired. We wish you the best in all things that you do and we are thankful for every memory we made together, we appreciate you it you [*sic*] so much." S.C. stated that she and V.E. understood that Ms. Brunner had been fired because they no longer saw her on school grounds. S.C. testified that she understood that a teacher could get into trouble for texting a student.

29. On cross-examination, S.C. stated that she believed Ms. Brunner was a teacher's aide because Ms. Brunner would go into other classrooms to help students. On cross-examination, S.C. clarified that when Ms. Brunner tried on the first dress on May 3, 2024, she only took off her shirt before putting the dress on and she kept her pants on. However, when she tried on the second dress, S.C. and V.E. could see both Ms. Brunner's bra and underwear. When Ms. Brunner took off the second dress, both S.C. and V.E. could see Ms. Brunner in her bra and underwear.

TESTIMONY OF STUDENT V.E.³

30. Student V.E. is 18 years old and currently in the 12th grade at SJLA. V.E. is familiar with Ms. Brunner because Ms. Brunner used to help her with her English assignments. V.E. was not assigned to Ms. Brunner as a student and is not a special education student. V.E. would go to Ms. Brunner's classroom two to three times per week, sometimes during lunch, Lion time, and during first period. V.E. would also sometimes go to Ms. Brunner's classroom when she was assigned to be in another classroom. V.E. stated that she went to Ms. Brunner's classroom "just to relax and socialize." V.E. stated that she also went to Ms. Brunner's classroom to eat lunch about three to four times per week "depending on the weather."

31. On May 3, 2024, V.E. was in her fifth period history class with Mr. Gonzalez when Ms. Brunner called Mr. Gonzalez and asked to send V.E. and S.C. over to her classroom. V.E. stated that Mr. Gonzalez did not give them an option but instead stated that Ms. Brunner wanted us in her classroom. V.E. stated that when a teacher tells me to do something, "I just do it."

32. When V.E. arrived in Ms. Brunner's classroom with S.C., Ms. Brunner told them that she had some dresses she wanted to show them. V.E. stated that she was mad for being pulled out of her history class because she had been busy with an assignment and preparing for a test. Ms. Brunner did not spend any time with V.E. or S.C. that day with schoolwork, and Ms. Brunner gave them no information as to why she called them to her class other than to show them dresses to get their opinion. Ms.

³ Student V.E. has the initials of V.E.G. However, the student will be referred to in this decision as V.E. to be consistent with the Statement of Charges in this matter.

Brunner told Ms. Bueno to lock the door, which she did. The only people in the room were Ms. Brunner, Ms. Bueno, S.C., and V.E. Both V.E. and S.C. were sitting at student desks directly in front of Ms. Brunner's desk. Ms. Brunner then removed her shirt down to her bra in full view of S.C. and V.E. and put the first dress on while wearing her pants. Then Ms. Brunner removed her pants under the first dress. V.E. stated that Ms. Brunner tried on two dresses on May 3, 2024. After putting on the first dress, Ms. Brunner asked S.C. and V.E. if they liked the dress, but V.E. was "doing her history homework." V.E. stated that it was awkward and weird when Ms. Brunner got undressed in front of V.E. and S.C. Ms. Brunner then removed the first dress and was standing in front of the girls in her bra and underwear before she put on the second dress. Ms. Brunner then asked V.E. and S.C. their opinion of the second dress, and V.E. stated that they were both good. V.E. stated that Ms. Bueno was helping Ms. Brunner with the dresses. During the time Ms. Brunner was undressing in front of them, V.E. looked at S.C. and expressed that she was very uncomfortable. V.E. was surprised that Ms. Brunner got undressed in front of her. Ms. Brunner then took off the second dress, was wearing only her bra and underwear, and then put her pants and shirt back on.

33. After Ms. Brunner got dressed in her regular clothing, V.E. and S.C. left Ms. Brunner's classroom for lunch. V.E. spoke with S.C. after leaving the classroom, and both stated that it was very awkward when Ms. Brunner got undressed in front of them. Thereafter, V.E. and S.C. returned to Ms. Brunner's classroom with their lunch to attend Art Club. At that time Ms. Brunner took S.C. and V.E. aside to apologize to them "about the situation." Ms. Brunner was very serious during the apology and told them she could get in trouble for what she did, and she regretted doing it. Ms. Brunner stated that it should not have happened. During the apology, Ms. Bueno was present. V.E. and S.C. then stayed in Ms. Brunner's class for Art Club and thereafter left for sixth period. After V.E. and S.C. left Ms. Brunner's classroom, they talked and agreed that "it

was awkward." V.E. stated, "we did not think it was a serious situation, so we just let it go." V.E. admitted that Ms. Brunner referred to her and S.C. as "my girls."

34. On Monday, May 6, 2024, Mr. Sheppard called V.E. to his office. When V.E. arrived, she was met by Mr. Sheppard and Dr. Raffiee-Shirazi, who asked her questions about the events of May 3, 2024. V.E. was asked to write a statement, which she did, about the events. V.E. wrote that statement in Spanish, and it was translated to English and received into evidence. V.E.'s statement mirrored her testimony at hearing.

35. V.E. emphasized during her testimony that she was very uncomfortable during the time Ms. Brunner was getting undressed to try on dresses in front of V.E. and S.C. She stated, "it was weird," and not something you expect a teacher to do. V.E. stressed that what Ms. Brunner did was not ok, and there are no circumstances when a teacher should get undressed in front of students.

36. V.E. characterized her relationship with Ms. Brunner as that of a friend, and they "were very close." V.E. stated that she sometimes spoke with Ms. Brunner on the phone when they were not at school, and she sometimes texted with Ms. Brunner outside of school time. Many texts and communications between V.E. and Ms. Brunner were received in evidence and shown to V.E., who admitted that she had these communications with Ms. Brunner. Some of those communications happened at 7:00 p.m. or 9:30 p.m., and many were unrelated to school. V.E. admitted that she did send one text to Ms. Brunner asking her to get her out of a scheduled class with another teacher, which Ms. Brunner did. V.E. also admitted to sending photographs to Ms. Brunner and also taking photographs with Ms. Brunner and S.C. V.E. stated that she never texted other teachers and did not take photographs with other teachers. In one text exchange, Ms. Brunner asked V.E. to bring her coffee and oatmeal for that day,

which V.E. did. V.E. brought Ms. Brunner coffee from Starbucks on multiple occasions. V.E. also admitted to texting Ms. Brunner on weekends and during school holidays. V.E. also stated she texted Ms. Brunner on May 15, 2024, because she believed that Ms. Brunner had been fired because she was not on school campus. Having received no response from Ms. Brunner to that text on May 15, 2024, V.E. texted Ms. Brunner again on May 28, 2024, but received no response. V.E. stated that it was unusual for Ms. Brunner to not respond to her text messages.

37. V.E. admitted to being deposed in this matter. She stated that she did not bring those text messages to the deposition because she believed she was protecting Ms. Brunner. V.E. understood that teachers are not supposed to be texting students. V.E. stated that Ms. Brunner never told her not to produce those text messages and never told her to not share anything with the district.

TESTIMONY OF LLOYD SHEPPARD

38. Lloyd Lorin Sheppard is currently employed as the principal of SJLA. He has worked for the district for seven years. Prior to his current position he worked as the Dean of Students at Monte Vista middle school from 2018 to 2019. From August 2019 to June 2022, he worked as the Assistant Principal of SJHS. Thereafter, he worked as Assistant Principal of SJLA. Since 2023 he has worked as the principal of SJLA. Prior to working at the district, Mr. Sheppard worked at two different school districts, including the San Bernardino Unified School district, and as a teacher at Rialto High School. Mr. Sheppard explained that SJLA covers grades six through twelve. His duties as principal include monitoring teachers and giving feedback, and classroom management. Mr. Sheppard makes sure that SJLA has a safe and clean campus and there is good communication with parents. His job duties also include investigation of complaints against staff members. Mr. Sheppard is familiar with Ms. Brunner, who he

stated is a former special education teacher at SJLA who provided “push-in” support to students in the general education classrooms.

39. Mr. Sheppard testified that he was responsible for investigating a complaint against Ms. Brunner in October 2023. The complaint was from a student who asserted that Ms. Brunner was “grooming a student in her class by sending text messages during class time and giving the student snacks and incentives.” Mr. Sheppard stressed that the complaining student used the word “grooming” in her complaint. Mr. Sheppard explained that his understanding of the word grooming is when an adult will start to have conversations with students and create a situation where students let down their guard to convince them to do things that they may not normally do. The written student complaint dated October 18, 2023, was received in evidence.

After receiving the student complaint, Mr. Sheppard interviewed the complaining student. Mr. Sheppard was very concerned that Ms. Brunner was giving a student gifts and texting a student during class time. Mr. Sheppard met with the student alleged to have received the text from Ms. Brunner, who is student A.R., as well as with Ms. Brunner. Student A.R. told him that Ms. Brunner had sent him a text asking him what juices he likes so that she could get him that item as a reward for bringing back his IEP paperwork. Mr. Sheppard’s investigation showed that Ms. Brunner did get the student A.R. a juice and did so as an incentive for him to bring back paperwork. Mr. Sheppard also found that Ms. Brunner also did text with student A.R. directly. Student A.R. told Mr. Sheppard that Ms. Brunner only sent him one text and he deleted it and Ms. Brunner’s contact information. Ms. Brunner told Mr. Sheppard that she had only sent one text to the student A.R. Mr. Sheppard did not ask to see Ms. Brunner’s phone to verify that answer. Mr. Sheppard stressed that teachers are not

allowed to text their students, and instead the district has approved communication tools for teachers to communicate with students. Specifically, the teachers can use the school district email to email the student, or can use Square Messenger, which is a mechanism for teachers to communicate with students or parents and is connected to the teachers' rosters. Mr. Sheppard stated that the district can monitor all communications on district email and on Square Messenger, which is the reason it is district-approved communication. Mr. Sheppard also stated that if a teacher is to communicate with a student, the approved topics of discussion include schoolwork, discipline, and issues involving the classroom. Teachers should never communicate with students during the weekends, or on school breaks.

Mr. Sheppard concluded his investigation into the October 18, 2023, student complaint regarding Ms. Brunner. He concluded that Ms. Brunner should not have been communicating with any student by text message. He also concluded that Ms. Brunner's behavior did not constitute grooming, but that it was bad judgment. Mr. Sheppard shared these conclusions with Dr. Raffiee-Shirazi in order to get further directive from her. Dr. Raffiee-Shirazi instructed Mr. Sheppard to advise Ms. Brunner to only use district-approved communication with students and not to use text messages, and for Mr. Sheppard to put this directive in writing. Mr. Sheppard testified that he did not issue a written notice to respondent about her conduct, but he did give her an oral directive in person to only communicate with students using school email or other school-approved mechanisms and to be mindful of her interactions with students. Mr. Sheppard testified that Ms. Brunner understood those directives he gave to her. He also stated that it was his own oversight for failing to put that oral directive in writing as Dr. Raffiee-Shirazi told him to do.

40. After the October 2024 complaint against Ms. Brunner, Mr. Sheppard was not made aware of any further allegations of Ms. Brunner texting students. He stated that if he was aware of any such further texting, he would have moved forward with discipline to Ms. Brunner.

41. Mr. Sheppard stated that he is aware of an application called Google Voice, which is an application on your phone that allows you to have a separate phone number than your cell phone number to use for sending text messages or phone calls. Mr. Sheppard stressed that Google Voice is not a district-approved form of communication between teachers and students. He stressed that the first point of contact for communication with students outside of school is the parents. Mr. Sheppard testified that Ms. Brunner never asked his permission to use Google Voice to text with students, and if he had learned she had been doing so after October 2023, that would have been a violation of his oral directive to her.

42. With regard to the May 3, 2024, incident, Mr. Sheppard first learned of the incident from a phone call from Dr. Raffiee-Shirazi he received over the weekend and before May 6, 2024. Dr. Raffiee-Shirazi told Mr. Sheppard to make sure he was available on Monday, May 6, 2024, for a meeting and an investigation of the matter. On May 6, 2024, Mr. Sheppard met with Dr. Raffiee-Shirazi regarding the allegations. Thereafter, the two of them met with Ms. Bueno, S.C., V.E., and Ms. Brunner.

Mr. Sheppard met with Ms. Bueno with Dr. Raffiee-Shirazi present. During that meeting Ms. Bueno gave him information regarding the May 3, 2024, incident consistent with her testimony at this hearing. Ms. Bueno was very emotional during her meeting with Mr. Sheppard.

Mr. Sheppard also met with the two students, S.C. and V.E., and did so separately. During those meetings a Spanish language interpreter was present. Mr. Sheppard also instructed each of the students to provide a written statement of the events of May 3, 2024, which they did. One of the student's statements was written in Spanish and was translated into English by one of Mr. Sheppard's staff members.

Mr. Sheppard testified that each of the three witnesses, Ms. Bueno, S.C. and V.E., provided consistent statements both in person and in writing.

Mr. Sheppard and Dr. Raffiee-Shirazi met with Ms. Brunner on May 6, 2024, along with a teacher's union representative. During that meeting Ms. Brunner's account of the May 3, 2024, incident differed from the other three witnesses. Specifically, Ms. Brunner stated that she tried on only one dress and did so over her clothing and did not get undressed. Ms. Brunner also stated that students S.C. and V.E. were not present when she tried on the dress, although Mr. Sheppard clarified on cross-examination that Ms. Brunner stated that S.C. and V.E. were in the classroom when Ms. Brunner tried on the dress but had their backs turned toward her. Mr. Sheppard stated that during her interview in his office, Ms. Brunner acted as if "it was not a big deal and nothing big had happened." Although, Mr. Sheppard admitted that Ms. Brunner was emotional during the meeting. During the meeting, Ms. Brunner admitted to calling S.C. and V.E. out from another classroom for the purpose of showing them the dress.

Mr. Sheppard was very concerned because there is never a circumstance when a teacher should be changing clothing in front of students. After Ms. Brunner was interviewed by Mr. Sheppard and Dr. Raffiee-Shirazi, she was sent home for the rest of the day while the investigation continued. Mr. Sheppard then called the parents of the two students to inform them of the investigation.

43. Mr. Sheppard also testified that he recalled running into Ms. Brunner on May 3, 2024, in the staff lounge late in the day. Mr. Sheppard observed Ms. Bueno and Ms. Brunner sitting at a table, and Ms. Brunner was crying. Mr. Sheppard asked if they were ok, and he received no answer. Thereafter, Mr. Sheppard left the staff lounge.

TESTIMONY OF SHARON RAFFIEE-SHIRAZI, ED.D.

44. Dr. Sharon Raffiee-Shirazi is currently employed by the district as the Executive Director of Personnel Services, a position she has held since 2016. Prior to this position Dr. Raffie-Shirazi worked as the Executive Director of Education Services for three years and as a middle school principal for eight years. She has worked for the district for 19 years total. Her duties in her current position include oversight of all classified and certificated staff in the district, hiring, discipline and training of all staff. She also conducts investigations of complaints regarding staff. Dr. Raffie-Shirazi has attended many trainings regarding investigations, sexual harassment, diversity and other issues.

45. Dr. Raffie-Shirazi is familiar with Ms. Brunner because Ms. Brunner has worked for the district as a special education teacher for about three years total. Ms. Brunner first worked at SJHS and then transferred to SJLA, where she worked for the 2023-24 school year. Dr. Raffie-Shirazi explained that SJLA is a magnet school with a military overtone, but it is not a military school. SJLA is very structured and has a "military flavor." She stated that SJLA is a flagship school and consists of a full middle school and high school covering grades sixth through twelfth. Dr. Raffie-Shirazi explained that at SJLA Ms. Brunner worked as a special education teacher for mild/moderate push-in students, who are special education students attending general education classes. Ms. Brunner had her own classroom, but she did not have her own classes. Instead, Ms. Brunner had a caseload of special education students.

46. Dr. Raffie-Shirazi first became aware of the October 2023 student complaint against Ms. Brunner when Mr. Sheppard sent her an email attaching the written student complaint wherein the student accused Ms. Brunner of grooming student A.R. Mr. Sheppard sent her the email asking her to help him with regard to the investigation. The allegations concerned Dr. Raffie-Shirazi, and she stated it was unusual for a student to use the word grooming in a complaint. Dr. Raffie-Shirazi also stated that teachers should not be giving students gifts, food, or juice, and doing so is discouraged. Dr. Raffie-Shirazi stated that Mr. Sheppard was responsible for investigating this October 2023 complaint, and she was giving him guidance on his investigation.

Dr. Raffie-Shirazi followed up with Mr. Sheppard about his investigation of the October 2023 complaint. Mr. Sheppard told her that there was not grooming, but that Ms. Brunner had texted a student and given food to a student. Mr. Sheppard indicated to Dr. Raffie-Shirazi that he should direct Ms. Brunner to have appropriate communication and professionalism with students. Dr. Raffie-Shirazi advised Mr. Sheppard that he needed to communicate this to Ms. Brunner and needed to follow that communication with the same direction in writing, which could be an email. Dr. Raffie-Shirazi stated that she thought that writing had been sent by Mr. Sheppard to Ms. Brunner but only learned over the last few months that he did not send the writing. Mr. Sheppard did tell Dr. Raffie-Shirazi that he gave an oral directive to Ms. Brunner telling her she must use only district-approved modalities to communicate with students and to be careful of her role as a teacher and what kinds of communication she had with students. He specifically advised Ms. Brunner that texting students was not allowed.

47. Dr. Raffie-Shirazi testified that on May 3, 2024, she received an anonymous phone call from an instructional aide who was upset about a teacher undressing in front of students. Dr. Raffie-Shirazi called the person back at the phone number they left for her and learned that Ms. Bueno is the person who called to complain. Ms. Bueno told her that something inappropriate had happened in the classroom that Dr. Raffie-Shirazi should know about. Dr. Raffie-Shirazi stated that during the phone call Ms. Bueno was extremely upset and crying. Ms. Bueno was conflicted and had respect for Ms. Brunner, but this was something she had to report. Ms. Bueno stated that Ms. Brunner's actions broke every rule that Ms. Brunner had taught her. Ms. Bueno told Dr. Raffie-Shirazi that Ms. Brunner disrobed and tried on dresses in front of two students, who were specifically called into Ms. Brunner's classroom for that purpose. She further told Dr. Raffie-Shirazi that the two students were very uncomfortable and told each other that as they left the classroom. Dr. Raffie-Shirazi reassured Ms. Bueno that she was doing the right thing and that Dr. Raffie-Shirazi would be coming to SJLA on Monday, May 6, 2024, as part of the investigation.

48. After the telephone call with Ms. Bueno, Dr. Raffie-Shirazi called Mr. Sheppard and informed him that she would be at SJLA on Monday morning for the investigation regarding the incident described by Ms. Bueno and that Ms. Brunner would likely be placed on leave while the investigation continued.

49. On May 6, 2024, Dr. Raffie-Shirazi went to SJLA and spoke with four people involved in the May 3, 2024, incident, along with Mr. Sheppard, and in the case of Ms. Brunner's interview a union representative from the San Jacinto Teacher's Association (union) was present. Dr. Raffie-Shirazi testified that Ms. Bueno described to her the events as set forth above from her testimony at this hearing. She stated that

Ms. Bueno told her that Ms. Brunner tried on two dresses on May 3, 2024, in front of the two students and Ms. Bueno. Dr. Raffie-Shirazi stressed that Ms. Bueno never told her that Ms. Brunner put the dresses on over her clothing, and instead Ms. Bueno told her that Ms. Brunner disrobed down to her bra and underwear before putting on each dress and before getting dressed back into her pants and shirt. Ms. Bueno also told Dr. Raffie-Shirazi that after Ms. Bueno told respondent that the two students were uncomfortable during the incident, Ms. Brunner asked Ms. Bueno if she should apologize to the two students. According to Ms. Bueno, when Ms. Brunner approached the two students to apologize, both students and Ms. Bueno were very uncomfortable, one student stated, "it is over," and the other student was silent. Dr. Raffie-Shirazi stated that Ms. Bueno was very emotional in the interview and did not want to see Ms. Brunner again. Dr. Raffie-Shirazi asked Ms. Bueno to provide a written statement of the events, which she did on May 6, 2024.

Dr. Raffie-Shirazi then met with each of the two students, S.C. and V.E., separately. Dr. Raffie-Shirazi stated that each of the two students told her that Ms. Brunner tried on two dresses in front of them and disrobed down to her underwear to do so. Each of the two students stated they were uncomfortable and considered themselves to be good friends with Ms. Brunner. Dr. Raffie-Shirazi clarified with each student regarding what they saw, which was consistent with their testimony at this hearing and in their written statements, which Dr. Raffie-Shirazi asked them to provide. Dr. Raffie-Shirazi testified that each of the two students told her that they could see Ms. Brunner when she took off her clothing down to her underwear and bra, and each student tried to look away and was uncomfortable. Each student stated that Ms. Brunner tried on two dresses that day and did not put the dresses on over her clothing. Dr. Raffie-Shirazi stated that the statements, both written and oral, provided by each of the two students was consistent with information provided by Ms. Bueno.

Dr. Raffie-Shirazi also met with Ms. Brunner, along with Mr. Sheppard and the union representative. Dr. Raffie-Shirazi asked Ms. Brunner to explain what happened and Ms. Brunner was very emotional and crying at points during the conversation. Ms. Brunner expressed that she knew what she did was wrong. Ms. Brunner told Dr. Raffie-Shirazi that she had two students come to her classroom because she was looking at what dress to wear to the prom and wanted to try the dress on. Ms. Brunner stated that she only tried on one dress. Initially, Ms. Brunner told Dr. Raffie-Shirazi that she put the dress over her clothing, and at another time in the interview Ms. Brunner told her that she only took off her shirt to try on the dress. Dr. Raffie-Shirazi stated that Ms. Brunner told her that during the time Ms. Brunner was trying on the dress, the two students "were in the far end of the room, on their phones, talking, and disengaged with what [Ms. Brunner] was doing." Dr. Raffie-Shirazi stated that Ms. Brunner had no other reason for calling the two students into her classroom other than to try on the dress. After the two students went to lunch, Ms. Bueno approached Ms. Brunner to tell her what she did was not appropriate. After the two students returned to Ms. Brunner's classroom, Ms. Brunner apologized to them. Dr. Raffie-Shirazi asked Ms. Brunner to provide a written statement of the events of May 3, 2024, and Ms. Brunner declined to do so. Dr. Raffie-Shirazi placed Ms. Brunner on paid administrative leave until the investigation was finished.

50. Dr. Raffie-Shirazi stressed that there is no degree of familiarity between a teacher and student that would allow a teacher to change their clothing in front of a student. Based on her review of information obtained in the investigation, Dr. Raffie-Shirazi concluded that Ms. Bueno and the two students provided consistent information of the events of May 3, 2024, but Ms. Brunner provided inconsistent information that conflicted with the other three witnesses. Some of the inconsistencies were: Ms. Brunner stated she tried on only one dress, when the other three witnesses

stated there were two; Ms. Brunner first denied taking off any clothing to try on the dress, then admitted to only taking off her shirt, which was inconsistent with the other three witnesses stating she disrobed down to her bra and underwear; and Ms. Brunner stated that the two students were across the room and disengaged, when the other three witnesses stated the two students were directly in front of respondent and were not disengaged.

51. On May 8, 2024, Dr. Raffie-Shirazi met in person with Ms. Brunner again, along with the union's president and union regional representative, at Dr. Raffie-Shirazi's office at the district. Dr. Raffie-Shirazi advised Ms. Brunner that after her review of the information provided in the investigation, the conduct of Ms. Brunner on May 3, 2024, was too egregious for the district to put her back in a classroom, and the district would move forward with recommendations for separation from her employment. Dr. Raffie-Shirazi offered Ms. Brunner the opportunity to resign if she chose to do so, and Ms. Brunner was non-responsive and stoic. Thereafter, Dr. Raffie-Shirazi signed the Statement of Charges in this matter.

52. After Ms. Brunner was served with the Statement of Charges and related documents in this matter, there was a Skelly hearing⁴ scheduled for August 7, 2024. Dr.

⁴ In *Skelly v. State Personnel Board* (1975) 15 Cal.3d 194, 215, the California Supreme Court held that in order to satisfy due process, an agency considering disciplinary action against a public employee must accord the employee certain "pre-removal safeguards," including "notice of the proposed action, the reasons therefor, a copy of the charges and materials upon which the action is based, and the right to respond, either orally or in writing, to the authority initially imposing discipline." The Supreme Court's directive gave rise to an administrative procedure known as a *Skelly*

Raffie-Shirazi explained that the objective third party who was assigned to serve as the Skelly officer in this matter was Seth Heeren, who knew nothing about this matter prior to serving as the Skelly officer. Mr. Heeren was provided with a copy of the charges in this matter. Dr. Raffie-Shirazi noted that the August 7, 2024, Skelly hearing did not take place because Ms. Brunner chose to provide a written statement, which was received in evidence, to Mr. Heeren in lieu of appearing in person. After review of the information provide, Mr. Heeren made the decision that the charges against Ms. Brunner should move forward. Thereafter, the matter came before the district's school board, and the board agreed unanimously to move forward with dismissal of Ms. Brunner.

53. Dr. Raffie-Shirazi testified that only one month prior to this hearing, and well after the Statement of Charges had been served on Ms. Brunner, she first became aware of a series of emails sent between Ms. Brunner and students S.C. and V.E. Dr. Raffie-Shirazi stated that she was shocked to see these email communications, which she described as being "way outside of the domain of what we expect," and as "inappropriate boundary breaking." She stated that the familiarity between Ms. Brunner and the two students was deeply concerning.

54. Dr. Raffie-Shirazi testified that at the time of hire of Ms. Brunner by the district, Ms. Brunner acknowledged and signed multiple district policies at issue in this matter, as shown in Ms. Brunner's personnel file and received in evidence. Specifically, Ms. Brunner signed and acknowledged the district's sexual harassment policy and dress and grooming policy. Furthermore, Dr. Raffie-Shirazi testified that other district

hearing, in which an employee has the opportunity to respond to the charges upon which the proposed discipline is based.

policies, administrative regulations, and code of ethics for teachers as adopted by the district were violated by Ms. Brunner, including: the district's sexual harassment policy, dress and grooming policy, policy on professional standards and code of ethics, policy on maintaining appropriate adult-student interactions, policy for absences and excuses, policy regarding conduct, policy regarding mobile communication devices, policy regarding a positive school climate, and the policy regarding classroom interruptions.

Dr. Raffie-Shirazi explained that Ms. Brunner's actions on May 3, 2024, by calling two students out of their classrooms during instructional time for inappropriate reasons not related to school and only for personal reasons, as well as undressing in front of students, Ms. Brunner violated emotional safety boundaries for those students, used mobile phones to text students instead of district-approved communication devices, left campus during work time to shop for dresses, and referred to S.C. and V.E. as "my girls" and sent them on Starbucks runs for her, thereby having inappropriate familiarity with them, all violated these district policies and regulations. Dr. Raffie-Shirazi stated that while Ms. Brunner was not alleged to have committed sexual harassment, her conduct had characteristics consistent with sexual harassment.

55. Dr. Raffie-Shirazi testified that Ms. Brunner seriously breached boundaries with students S.C. and V.E. in many ways, including undressing in front of them. As a result, the district cannot trust respondent with student interactions again.

56. On cross-examination, Dr. Raffie-Shirazi admitted that Ms. Brunner remained on paid administrative leave from May 6, 2024, until August 2024, when she was placed on unpaid administrative leave. Dr. Raffie-Shirazi stated that on August 20, 2024, Ms. Brunner was brought back to do clerical work for the special education department and did not do so at a school site. Dr. Raffie-Shirazi acknowledged she

sent an email to Ms. Brunner on August 19, 2024, calling her in to do work while she was on paid administrative leave. Dr. Raffie-Shirazi stressed that Ms. Brunner was only doing clerical administrative work with no students present, and that the district would not put her in a classroom.

TESTIMONY OF SETH HEEREN

57. Seth Heeren is currently employed by the district as an Assistant Superintendent of Business Services, a position he has held since 2015. He has worked for the district for 18 years, since 2007. Other positions he has held at the district include Technology Systems Manager, Director of Technology, Director of Fiscal Services, and Executive Director of Business Services. Mr. Heeren served as the Skelly officer in this matter. Before doing so he did not know who Ms. Brunner was. He had never served as a Skelly officer prior to this matter. Dr. Raffie-Shirazi contacted him to ask him to serve as the Skelly officer.

58. Mr. Heeren testified that he understood his role as the Skelly officer to be as a neutral and to represent the interests of the community and students. He understood his assignment to be to read the charges, Ms. Brunner's response, and to make a determination on whether discipline should move forward. If he felt that the facts did not justify dismissal of Ms. Brunner, then he would have communicated so to the district. Mr. Heeren read the Statement of Charges, reviewed all related exhibits, including Ms. Brunner's written statement she submitted in lieu of personal appearance. Mr. Heeren did not interview any person in connection with this matter. Mr. Heeren read the entire written statement from Ms. Brunner and had no questions after that.

59. Based on the information he reviewed, Mr. Heeren determined that the charges for dismissal of Ms. Brunner should go forward. Mr. Heeren stated that the statement of Ms. Brunner that she changed clothing in front of students was egregious conduct and her actions were unprofessional and violated numerous district policies and regulations warranting dismissal. Mr. Heeren stated that he was concerned about the “grooming” situation, which he clarified stemmed from the October 2023 student complaint mentioned in the charges. He was also concerned about putting students in a precarious situation by changing clothes in front of them, making them feel uncomfortable. He stated he was also concerned because Ms. Brunner felt like the students were her friends.

60. Mr. Heeren also testified that he did not find Ms. Brunner’s written statement to be credible because she wrote that she tried on more than one dress, but she left her clothes on. He questioned how she could try on a second dress without disrobing. Mr. Heeren stressed that this description made no sense. Mr. Heeren also stated that he believes Ms. Brunner’s conduct of getting undressed in front of students constitutes immoral conduct. He also believes Ms. Brunner was dishonest because her version of events was not consistent with that of the other witnesses, and also did not make sense. He feels that Ms. Brunner’s statements were an effort to “downplay the situation.” Mr. Heeren never spoke to respondent during his role as Skelly officer.

Ms. Brunner’s Evidence

61. Ms. Brunner presented testimony from five witnesses at the hearing. Those witnesses included herself, two other teachers in the district as character witnesses, Patricia Salas, who is Ms. Brunner’s union representative from the California Teachers Association regarding the May 3, 2024, incident, and David Vollmar, who is Ms. Brunner’s union representative from the California Teachers Association regarding

the October 2023 investigation. The following factual findings are based on the testimony of those witnesses and supporting documents received in evidence.

TESTIMONY OF MS. BRUNNER

62. Jennifer Brunner received her bachelor's degree in English from National University. Thereafter, she received her master's degree in special education with dual credentials of special education mild/moderate and multiple subject. Ms. Brunner has been teaching for seven years. She was first hired by the district in the 2021-22 school year as a special education teacher at SJHS. During that time her caseload had students in grades 9 through 12. For the 2022-23 school year at SJHS she taught special education math and also "pushed in" to general education classes for students in her caseload. At the end of the first semester of the 2022-23 school year, Ms. Brunner transferred to SJLA where she worked as a special education teacher supporting students in general education classrooms. Her duties were to ensure special education students were getting the required supports in the general education classrooms. Ms. Brunner did not teach her own classes at SJLA, unlike her work at SJHS.

At SJLA Ms. Brunner supported students in grades 9 to 12 and provided push-in services, which Ms. Brunner explained as making sure the special education students in the general education classrooms could understand their content and express their knowledge. SJLA has a total of six periods in a day, and Ms. Brunner provided push-in services for five of those periods with one period being a preparation period. Ms. Brunner stated that there was flexibility on when she could do her preparation period. Ms. Brunner provided push-in services on Monday through Thursday, and on Friday she had a scheduled administrative day, where she had flexibility to do push-in services, but also to do other tasks like working on Individual Educational Programs

(IEPs), testing students, monitoring progress, and collaborating with teachers and parents. During the 2022-23 school year, Ms. Brunner had about 22 to 25 students on her caseload. At SJLA Ms. Brunner has her own classroom, which is a traditional classroom, but she does not teach a class.

63. Ms. Brunner explained that Lion time is like homeroom and happens at the beginning of the day, “unless there is some sort of odd schedule.” Lion time typically is shorter than the length of a regular period, which is about 50 minutes. Preparation time is time to prepare and do work that you can’t do when you are with students, including paperwork. She explained that passing period is the five to seven minutes that students have to get from one class to another. Ms. Brunner typically has students in her classroom during lunch time. On any given day other than Friday there were from three to five students in her classroom for lunch time, but on Fridays she had Art Club and typically had about 12 to 15 students in her classroom at lunch as a result. Other teachers at SJLA had students in their classrooms at lunch time. Ms. Brunner also explained that there is a morning ceremony at SJLA called “Reveille,” which lasts for about 10 minutes, and the entire school and all students are involved in that ceremony. Reveille marks the beginning of the school day.

64. Ms. Brunner testified that she first met V.E. in the 2022-23 school year when Ms. Brunner was providing push-in services in V.E.’s English class. Ms. Brunner provided assistance to V.E. while in that class, as Ms. Brunner did with other general education students in the class. Ms. Brunner explained that although V.E. is not a special education student, Ms. Brunner would occasionally provide support to general education students not in her caseload. A special education teacher is not supposed to “single out” special education students and in order to avoid that she provides support services to all students in the classroom. Ms. Brunner never introduced herself to

students as a special education teacher, and if students asked, she introduced herself as a support teacher.

65. Ms. Brunner stated that she also met S.C. in the 2022-23 school year when Ms. Brunner provided push-in services to S.C.'s English classroom. Ms. Brunner provided S.C. help during that class on occasion.

66. Ms. Brunner testified that V.E. would visit Ms. Brunner's classroom "mostly during Lion time." Ms. Brunner explained that V.E. was a very motivated student, and she would use the Lion time to get assistance from Ms. Brunner on assignments. Sometimes V.E. would ask her teacher if she could come to Ms. Brunner's classroom if she had extra time. S.C. also visited Ms. Brunner's classroom, but when she did so she was always with V.E. and never alone. In contrast V.E. would frequently visit Ms. Brunner's classroom alone. Initially, Ms. Brunner would assist V.E. with English and would assist her a lot as V.E. is an English language learner. Ms. Brunner stated that some of her work with V.E. "was more detailed." Ms. Brunner stated that there were other non-special education students who came to her classroom for assistance.

67. Ms. Brunner has known Ms. Bueno since she started working at SJLA in February or March of 2023. At that time Ms. Brunner was the only special education teacher at SJLA working with high school students. Having Ms. Bueno work with Ms. Brunner as her instructional aide allowed Ms. Brunner to "fill in the gaps" when Ms. Brunner could not push in to two classes at the same time.

68. On May 3, 2024, during Reveille, Ms. Brunner was outside the school with other teachers as the ceremony was happening. Ms. Brunner and two of those teachers were scheduled to be chaperones at the school prom, which was coming up soon. They were excited about the prom and were discussing what they would wear. During

the Reveille ceremony one of the other teachers gave some dresses to Ms. Brunner to try on to see if one would work for the prom. After Reveille, Ms. Brunner went to Lion time in her classroom. She stated that she had an administrative day on May 3, 2024, because it was a Friday, and she was not scheduled to push in to any classes that day. During Lion time on May 3, 2024, in Ms. Brunner's classroom, the only students present were V.E. and S.C. Ms. Brunner stated that V.E. needed assistance with her English assignment that day. After Lion time, first period classes started. Ms. Brunner stated that because it was an administrative day, she stayed in her classroom during first through fourth periods.

During fifth period on May 3, 2024, Ms. Brunner and Ms. Bueno left the school to go shopping for dresses at a store named DeeDee's. Ms. Brunner explained that she had looked at the dresses given to her by the other teacher that day and decided that only one of those dresses may work, but it needed some costume jewelry to "dress it up." She wanted to go to DeeDee's, a local store, which is located 10 minutes away from the school and had been recommended by Ms. Bueno, to find that costume jewelry. Ms. Brunner admitted that fifth period was not scheduled to be her free time that day, and she was expected to be in school during that fifth period. Ms. Brunner estimated that she and Ms. Bueno were away from school on that shopping trip for about 35 minutes total. While at the store, she purchased a pair of earrings, a necklace, and another dress that she thought may work for prom.

Ms. Brunner and Ms. Bueno returned to SJLA after the shopping trip at the end of the fifth period. When Ms. Brunner returned to school, she immediately called Mr. Gonzalez's classroom to have V.E. and S.C. come to her classroom, "so that [she] could make sure that [she] got schoolwork notes back to" V.E. before the Art Club began. Ms. Brunner stated that she asked Mr. Gonzalez what the students in his classroom

were doing, and he responded that they were “working independently at their desks.” Ms. Brunner stated that she asked him to send V.E. and S.C. to her classroom, and he did. When V.E. and S.C. arrived at Ms. Brunner’s classroom, Ms. Brunner asked V.E. what she had been doing in Mr. Gonzalez’s classroom, and V.E. responded that she was working on an assignment. Ms. Brunner stated that she told V.E. that she could go back to class, but V.E. stated she would just work in Ms. Brunner’s classroom.

Ms. Brunner had the dress she purchased, as well as the dresses given to her by the other teacher, on her desk. Ms. Brunner talked to V.E. and S.C. about prom and dresses. Ms. Brunner testified that she did try on two dresses during the end of fifth period with V.E., S.C., and Ms. Bueno in her classroom.

The following is a description given by Ms. Brunner during her testimony at hearing about how she tried on those two dresses in front of V.E., S.C., and Ms. Bueno.

Ms. Brunner tried on the first dress by “taking my arms out of the polo shirt I was wearing, the polo shirt was then bunched around my neck, and I slid the dress on with my arms, and as I was pulling the dress on, I pulled off the polo shirt.” Ms. Brunner stated that she left her pants on while she tried on the first dress. Ms. Brunner claimed that Ms. Bueno was at her desk during this time, and V.E. and S.C. were in the classroom among student desks “talking amongst themselves.”

In order to try on the second dress Ms. Brunner stated that she “took my arms out of the first dress and it was around my neck and put my hands in the second dress, and I had to remove my pants.” She stated that because the dress was form-fitting, “the dress got stuck on my head and [Ms. Bueno] helped pull the dress from my head.” She then, “pulled it down and then removed my jeans.” Notably, if the dress was form-

fitting to the point it was stuck on her head, it is unclear how she could have put it on over her jeans and thereafter taken off her jeans.

In order to get dressed back into her normal clothing, Ms. Brunner stated that while wearing the second dress, she put her pants back on first, then “did the same process to take off the second dress to put my polo back on.”

69. Ms. Brunner stated that after trying on the two dresses and re-dressing in her normal clothing, the bell rang ending fifth period, and V.E. and S.C. left the classroom to get their lunch. After they left, Ms. Bueno approached Ms. Brunner and told her that she overheard V.E. and S.C. talking to each other in Spanish and saying that they were uncomfortable to each other. Ms. Brunner testified that after hearing this, “my heart sank because I recognized that I had just changed my clothes in front of students and my aide, and one of my students was uncomfortable . . . I was sick about it.” Ms. Brunner stated, “I was shocked because I was surprised that it did not occur to me . . . I was in the moment at the time I decided to try on the dresses, and it did not occur to me, and it 100 percent should have.” Ms. Brunner recalled telling Ms. Bueno that she had never been in this situation and would never do anything to jeopardize her career. She felt bad if she made the students feel uncomfortable. Ms. Brunner told Ms. Bueno that she wanted to address the issue with V.E. and S.C. right away when they returned from lunch for Art Class, and that she wanted to keep all other students out of the classroom while she spoke with V.E. and S.C.

After V.E. and S.C. came back to Ms. Brunner’s classroom after getting lunch, Ms. Brunner took them to her desk with no other students present and told them that she had reflected on her decision to try on the dresses in front of them and realized that should not have happened. Ms. Brunner told them that she apologized if she made them uncomfortable and told them she crossed a boundary, was lost in the

moment, and was sorry. Ms. Brunner testified, "I made it clear to them that what I did was wrong, and I was sorry if they felt weird." Ms. Brunner stated that V.E. was just quiet, listened, and said nothing. S.C. told Ms. Brunner, "it was not a big deal." Thereafter, Ms. Brunner let the other students into her classroom and Art Club proceeded during fifth period.

70. After the bell rang to end fifth period, all of the students left Ms. Brunner's classroom. Ms. Brunner stated that she "was trying to keep it together," and was still "very upset." Ms. Bueno told Ms. Brunner that maybe she should get something to eat, and Ms. Bueno and Ms. Brunner then walked together to the staff lounge to get lunch. While in the staff lounge, Ms. Brunner got her lunch from the refrigerator and was crying, and Mr. Sheppard walked into the staff lounge. Mr. Sheppard saw Ms. Brunner crying and asked her if she was ok, and Ms. Brunner simply smiled and shook her head. Mr. Sheppard then quickly walked out of the staff lounge. Ms. Brunner took her lunch with her, and she and Ms. Bueno then walked back to Ms. Brunner's classroom. During that walk, Ms. Brunner expressed to Ms. Bueno that she felt sick about what she had done and wanted to talk to her other teacher friends about what she had done to get advice about what to do. Ms. Bueno told her not to discuss this with other teachers because those teachers are mandated reporters.

71. Ms. Brunner went back to her classroom at the end of sixth period to gather her things and "do the end of the day ceremony called 'Retreat'." Ms. Brunner stated that V.E. and S.C. came back to her classroom right before the Retreat ceremony that day to just say goodbye. When the bell rang, Ms. Brunner went out to the Retreat ceremony and V.E. and S.C. left, and Ms. Bueno left. Ms. Brunner did not discuss the incident with any other teachers.

72. On Monday, May 6, 2024, right before the bell rang to go to the morning Reveille ceremony, Ms. Brunner received a phone call wherein she was told that Mr. Sheppard wanted to meet with her. Ms. Brunner then went to Mr. Sheppard's office. When she arrived, she saw Mr. Sheppard, Dr. Raffiee-Shirazi, and the teacher's union president. Dr. Raffiee-Shirazi informed Ms. Brunner that she wanted to ask questions regarding the May 3, 2024, incident regarding the prom dress. Ms. Brunner knew immediately what Dr. Raffiee-Shirazi was talking about. Dr. Raffiee-Shirazi asked her what happened, and Ms. Brunner stated that she provided the same information she did at this hearing regarding the incident. Dr. Raffiee-Shirazi asked clarifying questions, and afterwards she informed Ms. Brunner that she needed to investigate further, and that she was sending Ms. Brunner home paid for the day and would follow up the next day. Dr. Raffiee-Shirazi told her it would be more comfortable for Ms. Brunner to go home. Ms. Brunner testified that she apologized during this meeting and acknowledged that what she did was wrong. She felt humiliated, embarrassed, sad, and remorseful.

73. On May 8, 2024, Ms. Brunner again met with Dr. Raffiee-Shirazi, who informed her that her investigation revealed that Ms. Brunner's actions on May 3, 2024, were egregious, the district could not trust Ms. Brunner to be around students and could not put her back in a classroom. Dr. Raffiee-Shirazi informed Ms. Brunner that the district would move forward with dismissing Ms. Brunner from employment. Ms. Brunner's union representative, Patricia Salas, was present during this meeting. Dr. Raffiee-Shirazi gave Ms. Brunner the option to resign in lieu of the district's pursuit of dismissal. Dr. Raffiee-Shirazi gave Ms. Brunner a notice of paid administrative leave, as well as written statements of the students. Ms. Brunner was placed on paid administrative leave on May 8, 2024.

74. After being placed on paid administrative leave, Ms. Brunner was called back by the district to work for SJLA by compiling information for a new special education teacher's training manual, to compile a PowerPoint presentation in conjunction with that training manual, and other clerical work. Ms. Brunner did this work for about two weeks.

75. At some point later, Ms. Brunner was served with a 30-day Notice of Dismissal and was placed on unpaid leave.

76. With regard to the October 2023 incident regarding the investigation of the student complaint against Ms. Brunner, Ms. Brunner testified that Mr. Sheppard told her he was investigating an allegation made against her. He told her he was investigating and would meet with Ms. Brunner at the end of the day, which he did. During that meeting Mr. Sheppard informed her that there was an allegation that Ms. Brunner exchanged text messages with a student during class. Ms. Brunner told him that she used the Google Voice application, and she did text student A.R., but not during class. She told Mr. Sheppard that she texted A.R. about returning his IEP paperwork. Ms. Brunner showed Mr. Sheppard the text, and he confirmed the receipt of that text. Mr. Sheppard also asked her if she had given any student money, to which she replied, "no." He then asked Ms. Brunner if she had given a student juice. In response, Ms. Brunner told him that when students do academic testing with her, she gives them a reward. For student A.R. she wanted to give him a reward of juice because at the beginning of the year she asks all her students if they have a favorite food or drink, and this student had a favorite juice. Ms. Brunner used the juice as an incentive, and doing so is not a prohibited practice. Ms. Brunner stated that Mr. Sheppard did not advise her to not give juice as an incentive.

77. Sometime after the October 2023 investigation by Mr. Sheppard, Ms. Brunner exchanged an email with Mr. Sheppard about student A.R. Specifically, student A.R. did not want to take juice as an incentive because after the October 2023 investigation he thought he would get in trouble for doing so. Ms. Brunner brought this to the attention of Mr. Sheppard, and Mr. Sheppard responded by email that he would talk to student A.R. to let him know it is ok to take the juice.

78. Ms. Brunner stated that at the end of the day after Mr. Sheppard's investigation of the October 2023 complaint, he met with her and told her that his investigation found that the student complaint was not substantiated. Ms. Brunner testified that Mr. Sheppard did not give her any verbal or written directives regarding any issue as a result of that October 2023 investigation. Ms. Brunner stated that Mr. Sheppard never told her to consider her interactions with students during that meeting, and he did not tell her to only use district-approved methods of communication with students. Ms. Brunner denied that Mr. Sheppard ever gave her a verbal warning about anything.

79. Ms. Brunner testified that she had previously had a communication with Mr. Sheppard with a union representative present, wherein she asked him if using the Google Voice application to communicate with students was ok, and his response was yes it was, and she could do so moving forward. Ms. Brunner stated that she was told that there was no district policy about using the Google Voice application, but she was aware that the "Parent Square" online platform is the preferred method of communication with students. Ms. Brunner claims she told Mr. Sheppard that Parent Square would not work for her because she has no students on her roster. Ms. Brunner testified that she started using Google Voice when she worked at SJHS where it was

used extensively by all teachers, and that the administration of SJHS was aware that teachers used Google Voice to communicate with students.

80. Ms. Brunner testified that she was offered a Skelly meeting, but she provided a written statement in lieu of that meeting, which she believed was acceptable. She stated that her written response, which was received in evidence, is accurate and truthful.

81. With regard to the series of text exchanges between Ms. Brunner and students V.E. and S.C., which were received in evidence, Ms. Brunner admitted she was a party to those text exchanges and the related photographs of her with V.E. and S.C. Ms. Brunner stated that at the time she exchanged those text messages, she believed them to be ok. However, upon further reflection, she now believes that those text messages were inappropriate and "too familiar," and led to a series of decisions that "broke boundaries."

82. Ms. Brunner also admitted that she did have student V.E. bring her coffee from Starbucks, but she stated this happened only one time.

83. Ms. Brunner testified that she has never treated students unequally on the basis of their sex. She has never intentionally embarrassed any student, and she never singled out students for attention. She denied ever sexually harassing any student or ever grooming any student. Ms. Brunner stated her intention has always been to support students. Ms. Brunner stated that the events underlying this matter weigh heavily on her, and she never had any malicious intent. Ms. Brunner admitted to breaking the trust of Ms. Bueno and to crossing boundaries with V.E. and S.C. and breaking their trust. She stated she has learned so much from these events and hopes to be given the opportunity to teach again because it is all she has ever wanted to do.

Ms. Brunner admitted that she “is wrong here,” but she will make better decisions moving forward.

TESTIMONY OF PATRICIA SALAS

84. Patricia Salas is currently employed by the California Teachers Association (CTA) as staff assigned to the district to represent certificated employees of the district, to do negotiations, and deal with other employment issues. Ms. Salas was the union representative for Ms. Brunner regarding the May 3, 2024, incident.

85. Ms. Salas was present during the May 8, 2024, meeting between Dr. Raffiee-Shirazi, Ms. Brunner, and the union president when Ms. Brunner was placed on paid administrative leave and informed that the district would move forward with her dismissal. Ms. Salas stated that the meeting lasted 10 minutes, and Ms. Brunner was crying and embarrassed.

86. In her capacity as a union representative, Ms. Salas is familiar with the contracts between the district and the San Jacinto Teachers Association. The contract provides for progressive discipline to teachers. Ms. Salas testified that it is her understanding that if a teacher is given a verbal warning, that the verbal warning is followed up by a written warning, which is important for documenting violations and how to cure deficiencies. Ms. Salas stated that it is her understanding that a written summary is expected when a verbal directive is given after an investigation. If nothing is put in writing, then it is her understanding that nothing was found in the investigation.

87. On cross-examination, Ms. Salas admitted that a school site administrator can always give a verbal directive regarding an issue that is not egregious. However, if

there has been a complaint and related investigation, the union expects that any verbal directive be followed up in writing.

TESTIMONY OF DAVID VOLLMAR

88. David Vollmar is currently employed by SJLA as a teacher, as well as the union representative for SJLA and lead negotiator for the teacher's union. Mr. Vollmar represented Ms. Brunner in his capacity as union representative in the fall of 2023 during the October 2023 investigation. Mr. Vollmar was present during the October 2023 meeting between Mr. Sheppard and Ms. Brunner regarding Mr. Sheppard's investigation of the student complaint. Mr. Vollmar testified that the meeting lasted about 10 to 15 minutes, and he recalled that Mr. Sheppard did not indicate there would be any discipline against Ms. Brunner in that meeting. Mr. Vollmar also testified that he recalled that Mr. Sheppard did instruct Ms. Brunner to not use a personal cell phone to call or text with a student. He recalled that Ms. Brunner brought up the use of the Google Voice application to contact students, and Mr. Sheppard stated that this was ok. Mr. Vollmar testified that he did not recall Mr. Sheppard giving Ms. Brunner any directives in that meeting.

89. On cross-examination, Mr. Vollmar stated that he did not recall Mr. Sheppard ever giving Ms. Brunner permission to text students, even using the Google Voice application. Mr. Vollmar testified that it is not appropriate for a teacher to text students under any circumstances.

TESTIMONY OF CHERI VEILLEUX

90. Cheri Veilleux is currently employed at SJLA as an English teacher for high school students. She has worked at SJLA for the past three years. Prior to that position she worked for eight years at Manning High School. Prior to that she worked

as a teacher at a charter school. Ms. Veilleux worked with Ms. Brunner at SJLA during the 2023-24 school year. Ms. Veilleux first met Ms. Brunner when Ms. Brunner first came to work at SJLA in 2023. Ms. Brunner was Ms. Veilleux's co-teacher for a few class periods, meaning that Ms. Brunner would come into Ms. Veilleux's classroom during class to make sure that students on Ms. Brunner's caseload were receiving their special education services. Ms. Veilleux stated that Ms. Brunner provided push-in services for several of Ms. Veilleux's classes, which were all English classes. Ms. Veilleux stated that Ms. Brunner provided support for her special education students, but also for other students in the class so as to not single out the special education students.

91. Ms. Veilleux testified that Ms. Brunner cared about all students, is a dedicated teacher and a good employee. Ms. Veilleux stated that Ms. Brunner takes her job as a teacher seriously and puts in her full effort.

92. Ms. Veilleux stated that if it is true that Ms. Brunner disrobed down to her undergarments in front of students, it would not change her opinion regarding Ms. Brunner. However, Ms. Veilleux admitted that undressing in front of students is not an acceptable practice.

TESTIMONY OF MARIA ELENA BAZALDUA

93. Maria Elena Bazaldua is currently employed as a Spanish teacher at SJLA for high school students. Ms. Bazaldua is familiar with Ms. Brunner because they worked together, even though Ms. Brunner never provided push-in services for Ms. Bazaldua's classes because Ms. Brunner does not speak Spanish. Ms. Bazaldua and Ms. Brunner are social friends, and they are both social friends with Ms. Veilleux. The three of them would "hang out" outside of school grounds about once a month, but they have not done so since November 2024. Ms. Bazaldua is familiar with Ms. Brunner in

both a professional and social setting. Ms. Bazaldua and Ms. Brunner were never in the same classroom during the workday, but they did share students at times. Both students V.E. and S.C. were in Ms. Bazaldua's class.

94. Ms. Bazaldua is familiar with the allegations in this matter, and she learned of the allegations from student V.E. Ms. Bazaldua stated that she understands the allegations to be that Ms. Brunner "made a huge mistake by confiding in students and overstepping boundaries," and that Ms. Brunner "forgot that they were students and not her friends and she tried on a dress in front of them." Ms. Bazaldua learned this information from V.E. at the school prom. Ms. Bazaldua was the teacher who loaned Ms. Brunner some dresses for the prom. While at the prom, V.E. and S.C. approached Ms. Bazaldua to ask her if Ms. Brunner was there because they knew that Ms. Bazaldua was a friend of Ms. Brunner. Ms. Bazaldua told V.E. and S.C. that Ms. Brunner was not feeling well, and that is when V.E. and S.C. told Ms. Bazaldua of the incident on May 3, 2024, when Ms. Brunner tried on the dresses in front of them.

95. Ms. Bazaldua did not reach out to Ms. Brunner after learning of the information about Ms. Brunner from V.E. and S.C. Ms. Bazaldua did speak to Ms. Veilleux about the information, and they decided to wait for Ms. Brunner to come to them. At some point Ms. Bazaldua, Ms. Veilleux, and Ms. Brunner talked about the matter after school time, and Ms. Brunner expressed embarrassment about the situation. At some point thereafter, Ms. Bazaldua spoke with V.E. and S.C. about how the situation made them feel because Ms. Bazaldua was worried about them. Both V.E. and S.C. told her they were scared Ms. Brunner would get fired and they did not want to get her in trouble. V.E. was very close to Ms. Brunner and told Ms. Bazaldua how much she missed Ms. Brunner. V.E. told Ms. Bazaldua that she wanted to talk to Ms. Brunner, but Ms. Bazaldua told her she could not do that.

96. Ms. Bazaldua stated that she thinks what Ms. Brunner did was a stupid mistake. Ms. Bazaldua testified that Ms. Brunner was always professional. However, Ms. Bazaldua stated that she knows that what Ms. Brunner did “was not the right thing to do,” and it was not intentional. She said that Ms. Brunner has a big heart and always wanted to be a teacher her entire life. To have her career be over because of a mistake broke Ms. Bazaldua’s heart.

97. Ms. Bazaldua admitted that Ms. Brunner inappropriately overstepped boundaries with students V.E. and S.C. She stated that it is important to be a role model for students. Ms. Bazaldua also admitted that it is not appropriate for a teacher to be texting students, and doing so consistently about matters not related to schoolwork is overstepping of boundaries.

98. Ms. Bazaldua admitted that Ms. Brunner had a friendship with V.E. and S.C. and would call them “my girls.” Ms. Bazaldua stated that S.C. and V.E. are no longer friends, but that V.E. will still ask Ms. Bazaldua how Ms. Brunner is doing.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. The “burden of proof” means the obligation of a party, to convince the trier of fact that the existence of a fact sought to be proved is more probable than its nonexistence. (*Redevelopment Agency v. Norm’s Slauson* (1985) 173 Cal.App.3d 1121, 1128.) The district has the burden of proof to establish cause to dismiss its employee.

2. The standard of proof in a teacher dismissal proceeding is a preponderance of the evidence. (*Gardner v. Commission on Professional Competence*

(1985) 164 Cal.App.3d 1035, 1039-1040.) A preponderance of the evidence means that the evidence on one side of an issue outweighs, preponderates over, and is more than, the evidence on the other side of the issue, not necessarily in number of witnesses or quantity, but in the convincing effect the evidence has on those to whom it is addressed. In other words, the term refers to evidence that has more convincing force than that opposed to it. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

Applicable Code Sections Regarding Dismissal Actions

3. A permanent employee may be dismissed for cause only after a dismissal hearing. (Ed. Code, §§ 44934 and 44944.)

4. Education Code section 44932 provides the grounds for dismissing a permanent employee. Subdivision (a)(1) authorizes dismissal for immoral conduct. Subdivision (a)(3) authorizes dismissal for dishonesty. Subdivision (a)(6) authorizes dismissal for evident unfitness for service.

5. Education Code section 44939 provides the grounds for suspension of a permanent employee.

6. Education Code section 44944 establishes the right to a hearing, the process for selecting the three-member Commission on Professional Competence, and sets forth the Commissions' authority regarding its final decision.

7. Education Code section 44938 outlines the procedures the governing board must follow before acting on any charges brought against a permanent employee.

Board Policies and Additional Statutes Alleged to Be Applicable

8. District Board Policy (BP) 4119.21 sets out ethical standards of educators as adopted by the district. BP 4119.12 defines “inappropriate conduct” to include the following:

1. Engaging in conduct that endangers students, staff, or others . . .
2. Engaging in harassing or discriminatory behavior towards students, [or] staff . . .

[¶] . . . [¶]

4. Engaging in inappropriate socialization or fraternization with a student or soliciting, encouraging, or maintaining an inappropriate written, verbal, or physical relationship with a student.

[¶] . . . [¶]

9. Being dishonest with students, parents/guardians, staff, or members of the public, including, but not limited to, falsifying information in employment records or other school records.

[¶] . . . [¶]

14. Wearing inappropriate attire.

9. BP 4119.21 further provides that an educator “shall make reasonable effort to protect the student from conditions harmful to learning or health or safety,” as well as “shall not intentionally expose the student to embarrassment or disparagement,” and “shall not use professional relationships with students for private advantage.”

10. BP 4119.11, as adopted by the board, prohibits sexual harassment against district employees, and defines “sexual harassment” to include “harassment based on the sex, gender, or sexual orientation of the victim.” District Administrative Regulation (AR) 4119.11 defines “sexual harassment” to include “unwelcome sexual advances . . . or other unwanted verbal, visual, or physical conduct of a sexual nature, regardless of whether or not the conduct has the purpose or effect of . . . creating an intimidating, hostile, or offensive work environment.” Examples set forth in AR 4119.11 include “[u]nwelcoming visual conduct such as . . . displaying sexually suggestive objects . . . ”

11. BP 4119.24, as adopted by the board, sets forth standards for maintaining appropriate adult-student interactions. As noted in BP 4119.24, the district expects all adults with whom students may interact “shall not engage in unlawful or inappropriate interactions with students and shall avoid boundary-blurring behaviors that undermine trust in the adult-student relationship and lead to the appearance of impropriety.” BP 4119.24 further provides:

Employees shall remain vigilant of their position of authority and not abuse it when relating with students. Examples of employee conduct that can undermine professional adult-student interactions or create the appearance of impropriety include, but are not limited to:

[¶] . . . [¶]

2. Being alone with a student outside of the view of others.

[¶] . . . [¶]

4. Maintaining personal contact with a student that has no legitimate educational purpose, by phone, letter, electronic communications, or other means, without including the student's parent/guardian or the principal.

When communicating electronically with students, employees shall use district equipment or technological resources when available. Employees shall not communicate with students through any medium that is designed to eliminate records of the communications. . .

[¶] . . . [¶]

7. Singling out a particular student for personal attention and friendship, including giving gifts and/or nicknames to individual students.

8. Addressing a student in an overly familiar manner, such as by using terms of endearment.

9. Socializing or spending time with students outside of school-sponsored events, except as participants in community activities.

10. Sending or accompanying students on personal errands unrelated to any legitimate educational purpose.

[¶] . . . [¶]

13. Disclosing personal, family, or other private matters to students or sharing personal secrets with students.

12. BP 4119.22, as adopted by the district, sets out standards for dress and grooming for employees, and provides:

The Board of Trustees believes that appropriate dress and grooming by district employees contribute to a productive learning environment and model positive behavior. During school hours and at school activities, employees shall maintain professional standards of dress and grooming that demonstrate their high regard for education, present an image consistent with their job responsibilities and assignment, and not endanger the health and safety of employees or students. . . .

13. BP 6116, as adopted by the district, sets standards regarding classroom interruptions and states, “[i]n order to allow students to take full advantage of learning opportunities while in the classroom, school staff shall ensure that interruptions are kept to a minimum.”

14. BP 5137, as adopted by the district, sets standards for district staff’s responsibility to create a positive interpersonal relationship among students and between students and staff, and states in part:

All staff are expected to serve as role models for students by demonstrating positive, professional attitudes and respect toward each student and other staff members. Teachers shall use effective classroom management techniques based on clear expectations for student behavior.

[¶] . . . [¶]

Staff shall consistently enforce Board policies and regulations which establish rules for appropriate student conduct

15. The district has adopted the following BPs and ARs, among others, regarding student conduct, which respondent is required pursuant to BP5137, to be modeling and enforcing.

16. AR 5132 sets forth student dress code requirements and prohibits clothing that is “vulgar, lewd, obscene, profane, or sexually suggestive” and requires that clothing be “sufficient to conceal undergarments.”

17. BP 5113 sets forth standards regarding student absences and excuses, and provides that absence from school and class participation shall only be excused for health reasons, family emergencies or justifiable personal reasons.

18. BP 5131 sets forth prohibited conduct for students, including sexual harassment, conduct that disrupts the orderly classroom or school environment, obscene acts, use of a cell phone or other mobile communication device during instructional time, wearing of any attire that violates district or school dress codes, and

tardiness or unexcused absence from school. BP 5131 further provides employees of the district “are expected to enforce standards of conduct.”

Relevant Judicial Authority

IMMORAL CONDUCT

19. The seminal case for teacher dismissals is *Morrison v. State Board of Education* (1969) 1 Cal.3d 214. There the Supreme Court held that where charges of immoral conduct, unprofessional conduct, or evidence unfitness for service are raised in teacher dismissal cases, the applicable standard is whether the person is fit to teach. The factors outlined in *Morrison* must be analyzed to determine, as a threshold matter, whether the cited conduct indicates unfitness for service. (*Id.* at p. 229.)

20. Immoral conduct has been defined to mean that which is hostile to the welfare of the general public and contrary to good morals. It includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, and dissoluteness. It can be conduct that is willful, flagrant, or shameless, conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. (*Board of Education of the San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

DISHONESTY

21. Not every falsehood constitutes “dishonesty” within the meaning of the Education Code section 44932, subdivision (a). For that reason, dishonesty must also be evaluated in light of the *Morrison* criteria. (*Fontana Unified School District v. Burman* (1998) 45 Cal.3d 208, 220, fn. 12).

EVIDENT UNFITNESS FOR SERVICE

22. The applicable standard or determinative test in teacher dismissal cases is whether the person is fit to teach. "Fitness to teach" is a question of ultimate fact. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal.App.3d 555, 560-561.)

23. "Evident" is defined as "clear to the vision and understanding." "Unfit" is defined as "not fit; not adapted to a purpose, unsuitable; incapable; incompetent; and physically or mentally unsound" and "unsuitable, incompetent and not adapted for a particular use or service." (*Palo Verde Unified School District of Riverside County v. Hensey* (1970) 9 Cal.App.3d 967, 972.)

24. In *Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, the court noted the two parallel, yet contradictory, lines of cases regarding "unfit for service." One line of cases equated that term with "unprofessional conduct" and the other line of cases distinguished the two definitions. In deciding that the latter line of cases was the correct way to evaluate "unfit to serve," the *Woodland* court complied with the rules of statutory construction. The *Woodland* court concluded that "unprofessional conduct" and "evident unfitness for service" do not mean precisely the same thing. Although conduct constituting "evident unfitness for service" will often constitute "unprofessional conduct," the converse is not always true. Evident unfitness for service requires that unfitness for service be attributable to defect in temperament, which is not necessary for a finding of unprofessional conduct. Nevertheless, lower courts may not disregard the criteria for unfitness set out in *Morrison* where that court concluded that "unprofessional conduct" meant conduct showing a teacher was unfit to teach. These criteria must be analyzed to determine, as a threshold matter, whether the conduct indicates unfitness

for service. If it does, the next step is to determine whether the “unfitness” is “evident”; i.e., whether the offensive conduct is caused by a defect in temperament. (*Id.* at pp.1442-1445.) A finding of “unfit to serve” can be made if the evidence, taken in the aggregate, shows that retaining the employee would pose a significant danger of psychological harm to students and fellow teachers. (*Id.* at p.1456.)

25. An employee can be dismissed from the teaching profession only upon a showing that his or her retention in the profession poses a significant danger of harm to either students, school employees, or others who might be affected by his actions as a teacher. The inquiry is whether any adverse inferences can be drawn from the teacher’s conduct as to his teaching ability, or as to the possibility that publicity surrounding the past conduct may in and of itself substantially impair his function as a teacher. (*Morrison, supra*, at p. 235.)

26. To establish a teacher is unfit to teach, *Morrison* requires a nexus between government employment and alleged employee misconduct stemming from the principle that “[n]o person can be denied government employment because of factors unconnected with the responsibilities of that employment.” (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th1454, 1463.)

27. “Unlike ‘unprofessional conduct,’ ‘evident unfitness for service’ connotes a fixed character trait, presumably not remediable merely on receipt of notice that one’s conduct fails to meet the expectation of the employing school district.” (*San Diego Unified School District v. Commission on Professional Competence* (2013) 214 Cal.App.4th 1120, 1142-43.)

28. An employee's actions on a given day may suggest a lack of judgment and discretion or may be an isolated act precipitated by an unusual accumulation of pressure and stress. An absence of any other incidents in the employee's teaching career suggestive of lack of judgment or discretion can further distinguish the aberrant character of the act at issue. In such a case, a fact finder could reasonably conclude that the isolated incident of poor judgment was outweighed by years of demonstrated teaching competence, and that on balance the employee possessed the qualities of character necessary for teaching fitness. (*Board of Education v. Jack M.* (1977) 19 Cal. 3d 691, 696-701.)

29. In determining whether the teacher's conduct indicated unfitness to teach, such matters as (1) the likelihood that the conduct may have adversely affected students or fellow teachers, (2) the degree of such adversity anticipated, (3) the proximity or remoteness in time of the conduct, (4) the extenuating or aggravating circumstances, if any, surrounding the conduct, (5) the likelihood of the recurrence of the questioned conduct, and (6) the notoriety and publicity accorded the teacher's conduct may be considered. (*Jack M., supra.*, at p.702, fn. 5.)

30. The nexus between an employee's conduct and his or her fitness to teach is established when the conduct is detrimental to the mission and functions of the employer. Factors to consider are whether the acts demonstrate a serious lapse in good judgment, the teacher fails to recognize the seriousness of his misconduct, the teacher attempts to shift blame to parents and students, the principal has lost confidence in the teacher's ability to serve as a role model based upon his or her actions, or, most noteworthy, the teacher's testimony that he or she does not think his or her actions would have any impact on his ability to teach students if any of them had viewed the actions as immoral. The conduct itself, together with the teacher's

failure to accept responsibility or recognize the seriousness of it, given his or her position as a teacher and role model, demonstrates evident unfitness to teach. (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1465-66.)

31. One act does not alone demonstrate the unfitness of the teacher but is simply one of the factors to be considered. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal. App.3d 555, 561-62.)

32. There must be a nexus between the teacher's conduct and his or her usefulness to the school district and only when so construed can grounds to dismiss for immoral conduct or unfitness to serve be constitutionally applied. (*Board of Trustees v. Judge* (1975) 50 Cal. App. 3d 920, 929.)

***Morrison* Factors**

33. In *Morrison, supra*, the Supreme Court suggested seven factors to consider when evaluating whether the school employee should be dismissed: (1) the likelihood that the conduct adversely affected students or fellow teachers and the degree of such adversity; (2) the proximity or remoteness in time of the conduct; (3) the type of teaching certificate held by the teacher; (4) the existence of extenuating or aggravating circumstances and publicity, if any, surrounding the conduct; (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (6) the likelihood of recurrence of the questioned conduct; and (7) the extent that the discipline may adversely impact or have a chilling effect on the constitutional rights of the teacher.

34. The *Morrison* factors may be applied to the charges in the aggregate. When a camel's back is broken, the trier of fact need not weigh each straw in its load

to see which one could have done the deed. A trier of fact is entitled to consider the totality of the offensive conduct. (*Woodland Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1456-1457.)

35. Only the pertinent *Morrison* factors need to be analyzed. (*Broney v. California Commission on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 476.)

Other Disciplinary Considerations

36. An administrator's loss of confidence in the educator and doubt regarding the educator's ability to serve as a role model for students are factors that may be considered. (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1460.)

37. The Commission is vested with discretion not to dismiss an employee even if grounds for discipline exist. (*Fontana Unified School District v. Burman* (1988) 45 Cal.3d 209.)

Evaluation of Charges

38. The evidence established and Ms. Brunner admitted that she inappropriately crossed teacher/student boundaries on numerous occasions, including text communications to S.C. and V.E., and particularly on May 3, 2024, when she undressed in front of two students and an instructional aide. Ms. Brunner did not deny that she undressed in front of two students and an instructional aide, but she provided a version of events regarding the incident that differed in many respects from the consistent version provided by the two students and Ms. Bueno. Ms. Brunner's version of those events minimized her conduct and conflicted directly with consistent versions provided by the two students and Ms. Bueno. Specifically, Ms. Brunner's statements

regarding how she got undressed to try on two dresses by keeping her pants on and then putting on the dress while at the same time taking off her shirt to minimize her exposure was simply not credible and directly conflicted with the credible and consistent testimony of the two students and Ms. Bueno. Additionally, Ms. Brunner testified that the two students were not near her when she was undressing and were not paying attention, which directly contradicted the testimony of the two students and Ms. Bueno, who all testified the students were at desks directly in front of Ms. Brunner.

Furthermore, Ms. Brunner admitted, and the evidence established that she crossed student/teacher boundaries by inappropriately texting the two students outside of school time and for topics not related to schoolwork. Ms. Brunner even admitted that doing so essentially dissolved the necessary boundaries between student and teacher leading up to the May 3, 2024, incident. Student V.E. testified that Ms. Brunner was her friend, further demonstrating the erosion of necessary boundaries. The text messages received into evidence further demonstrate the inappropriate nature of those text communications between Ms. Brunner and the two students. Notably, most of those text communications occurred after the October 2023 investigation related to a student complaint against Ms. Brunner's use of text messages with a student in class.

The evidence established that Mr. Sheppard investigated that October 2023 student complaint and concluded that no discipline was warranted against Ms. Brunner. However, Mr. Sheppard credibly testified that he gave a verbal directive to Ms. Brunner at the end of his investigation to not use text messages to communicate with students and instead to use district-approved methods of communication only, as well as to be mindful of her interactions with students. While Mr. Sheppard did not

provide that verbal directive to Ms. Brunner in writing, he credibly testified that he gave her that directive verbally, and he simply neglected to put it in writing. Despite this verbal directive, Ms. Brunner continued to have inappropriate text communication with students V.E. and S.C. after the date of that verbal directive.

Ms. Brunner is obligated to abide by the district policies and regulations that she refrains from engaging in conduct that undermines a positive school climate, that she maintains appropriate adult student interactions, and that she acts as a role model to students. The Commission finds that Ms. Brunner failed to abide by these district policies and regulations.

39. A preponderance of the evidence established that students S.C. and V.E., as well as Ms. Bueno, experienced emotional, social and psychological harm due to Ms. Brunner's actions of undressing in front of them on May 3, 2024. Ms. Bueno credibly testified that the incident had such a negative impact on her that she almost quit the teaching profession entirely. Both S.C. and V.E. testified that they were uncomfortable because of Ms. Brunner's actions. Accordingly, the Commission finds that the *Morrison* factors of the likelihood Ms. Brunner's conduct caused an adverse effect to students was established and that likelihood of adverse effects on students and fellow teachers was very high, and the degree of those adverse effects was very high.

40. Ms. Brunner's actions on May 3, 2024, were very recent in time, only less than one year ago. Furthermore, Ms. Brunner's teaching credential as a special education teacher puts her in a position of authority over particularly vulnerable students, who are disadvantaged in many ways. Accordingly, the Commission finds that consideration of these *Morrison* factors demonstrates that her actions of disregarding appropriate teacher/student boundaries are particularly concerning.

41. Furthermore, Ms. Brunner's actions on May 3, 2024, of undressing in front of two students and an instructional aide were for the sole purpose of trying on a prom dress, and not for any legitimate educational purpose. Ms. Brunner testified that she brought S.C. and V.E. over from another classroom for an assignment, however that testimony directly contradicts the credible testimony of both the students and Ms. Bueno, who all consistently testified that the reason Ms. Brunner pulled the two students out of class was to try on the prom dresses. Accordingly, the Commission finds that Ms. Brunner's motivation for her action was not praiseworthy but was instead blameworthy. The Commission also finds that Ms. Brunner's actions in engaging in inappropriate text communications with students S.C. and V.E. for many months prior to the May 3, 2024, incident thereby eroding the teacher/student boundary constitutes further aggravating circumstances for her actions.

42. With regard to the *Morrison* factor of likelihood the conduct will reoccur, the Commission finds that there is a high likelihood that Ms. Brunner will engage in such conduct in the future. Specifically, a preponderance of the evidence shows that Ms. Brunner has consistently crossed the teacher/student boundary on many occasions and for many months with her inappropriate text communication with students. Despite having a previous warning from Mr. Sheppard about appropriate interactions with students, Ms. Brunner continued her behavior. Furthermore, it was not until Ms. Bueno confronted Ms. Brunner that she finally realized that her action of undressing in front of students was wrong. After the district investigated the May 3, 2024, incident Ms. Brunner provided dishonest information regarding the events of May 3, 2024, in an attempt to minimize her actions. These factors demonstrate that Ms. Brunner is unable or unwilling to recognize when she crosses the teacher/student boundary, calling into question her ability to stop doing so.

43. Accordingly, the Commission finds that Ms. Brunner violated district policies and regulations, and her conduct constitutes immoral conduct, as set forth above. Additionally, the Commission finds that, as set forth above, Ms. Brunner is evidently unfit for service as a teacher based upon her fixed character trait of crossing teacher/student boundaries that is not remediable on receipt of notice that her conduct was wrong.

44. Finally, the Commission finds that Ms. Brunner engaged in dishonesty with the district during its investigation of the May 3, 2024, incident. Specifically, Ms. Brunner's version of events on May 3, 2024, was less credible than that of the three witnesses, V.E., S.C., and Ms. Bueno, who each provided consistent and credible testimony regarding how Ms. Brunner got undressed on that day. Ms. Bueno's testimony was particularly striking because she was so emotionally distraught and conflicted about reporting Ms. Brunner's behavior. Ms. Bueno's testimony regarding the events was heartfelt and credible, and she had no motivation to provide untruthful testimony. By comparison, Ms. Brunner's testimony regarding why she pulled V.E. and S.C. out of Mr. Gonzalez's classroom, how she got undressed, and where the students were sitting in the classroom, all lacked credibility and tended to minimize Ms. Brunner's actions. On balance, a preponderance of the evidence established that Ms. Brunner was dishonest during the district's investigation.

Cause Exists to Dismiss Ms. Brunner

45. Cause exists to dismiss Ms. Brunner pursuant to Education Code section 44932, subdivision (a)(1), because the evidence established that Ms. Brunner engaged in immoral conduct.

46. Cause exists to dismiss Ms. Brunner pursuant to Education Code section 44932, subdivision (a)(3), because the evidence established that Ms. Brunner was dishonest during the investigation of the matter involving students V.E. and S.C.

47. Cause exists to dismiss Ms. Brunner pursuant to Education Code section 44932, subdivision (a)(6), because the evidence established that Ms. Brunner is evidently unfit for service.

ORDER

Ms. Brunner's appeal of her immediate suspension and dismissal from employment with the San Jacinto Unified School District is denied. The district's request to suspend and dismiss Ms. Brunner is granted. Ms. Brunner shall be dismissed from the district.

DATE: 04/14/2025

Troy Liggins
Troy Liggins (Apr 14, 2025 19:17 PDT)
TROY LIGGINS

Commission Member

DATE: 04/14/2025

Arati Clarke

ARATI CLARKE

Commission Member

DATE: 04/15/2025

Debra D. Nye-Perkins

DEBRA D. NYE-PERKINS

Administrative Law Judge

Office of Administrative Hearings